

Republika ng Pilipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod
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EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG PANLUNGSOD, CITY OF DAVAO, HELD ON TUESDAY, DECEMBER 1, 1981.

PRESENT:

Councilor Julieta C. Feliciano, Acting Presiding Officer, Vice Mayor Cornelio P. Maskarifo, Councilors Valentino C. Banzon, Bienvenido O. Amora, Dominador B. Zuño, Jr., Pantaleon V. Pelayo, Jr., Tomas Monteverde, Jr., Alfredo H. Vergara, Exuperio M. Porras, Cipriano Villafuerte, Jr. and Diosdado A. Mahipus.

ABSENT:

Councilors Alexis C. Almendras, Domingo R. Vidanes, Jose A. Jison, Benigno S. Bangoy and Antonio S. Castillo.

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RESOLUTION NO. 363

Proposed Ordinance, entitled, "AN ORDINANCE REQUIRING ALL SELLERS AND DEALERS OF LIQUIFIED PETROLEUM GAS (LPG) IN DAVAO CITY TO HAVE WEIGHING SCALES IN THEIR PLACE OF BUSINESS IN DAVAO CITY, AND FOR OTHER PURPOSES.", was presented for consideration and appropriate action of the Body by Councilor Tomas Monteverde, Jr. Councilor Monteverde, Jr. made it a point that this proposed Ordinance carries a fine of P100.00 or an imprisonment of not more than one (1) month or both at the discretion of the Court upon violation thereof. He further stated that a conviction under this Ordinance shall be a ground for the cancellation of license and business permit to sell LPG in Davao City.

Councilor Dominador B. Zuño, Jr. proposed an amendment to increase the fine to P200.00 instead of only P100.00. The amendment was accepted by the proponent.

Councilor Exuperio M. Porras likewise proposed to amend the title of the Ordinance to read, "An Ordinance Regulating the Sale of the LPG in Davao City and for other purposes". The amendment was also accepted by the proponent.

After careful deliberation, on motion of Councilor Tomas Monteverde, Jr., duly seconded by Councilors Dominador B. Zuño, Jr. Pantaleon V. Pelayo, Jr., as amended by Councilors Dominador B. Zuño, Jr. and Exuperio M. Porras, it was

RESOLVED, AS IT IS HEREBY RESOLVED, To approve an Ordinance, entitled:

ORDINANCE NO.166

AN ORDINANCE REGULATING THE SALE OF LPG IN DAVAO CITY, AND FOR OTHER PURPOSES.

Be it Ordained by the Sangguniang Panlungsod, City of Davao, that:

Resolution No. 363, Ordinance No. 166,
series of 1981, cont'd.:

SECTION 1.- All sellers and dealers of liquified petroleum gas (LPG) in Davao City contained in cylinders with contents of 5 lbs., 11 kilograms, 22 kilograms, 45 kilograms, 50 kilograms, and any other weight are required to indicate in the cylinder the weight of the liquified petroleum gas (LPG) contained therein and the weight of the cylinder itself;

SEC. 2. - All LPG sellers and dealers in Davao City are required to have a weighing scale in their places of business duly certified by the Bureau of Standards, Ministry of Commerce and Trade and duly inspected and scaled twice a year by the City Treasurer, City of Davao, before they can be issued any license or business permit to do business in Davao City;

SEC. 3.- Any LPG sold in Davao City by sellers or dealers which is contained in cylinder must be weighed in the presence of the customers before any sale is made;

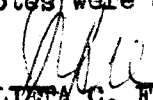
SEC. 4. - Any person, firm or corporation found violating any of the provisions of this Ordinance shall upon conviction be punished by a fine of not more than ₱200.00 or an imprisonment of not more than one (1) month or both at the discretion of the Court. A conviction under this Ordinance shall be ground for the cancellation of a license and business permit to sell LPG in Davao City. In case a partnership or corporation violates the provisions of this Ordinance, the Manager of said company in Davao City shall be criminally liable therefor.

SEC. 5. - This Ordinance shall take effect upon approval.

ENACTED: December 1, 1981.

CARRIED, By a majority of ten (10) affirmative votes. (Note: Vice Mayor Maskariño was out when the votes were taken.)

APPROVED:


JULIETA C. FELICIANO
City Councilor
Acting Presiding Officer

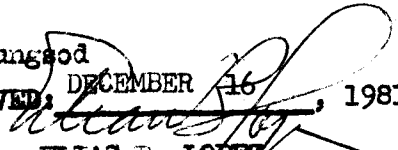
ATTESTED:


AGOSTIO P. FUENTES
Secretary of the Sangguniang Panlungsod
aba/esa

APPROVED: DECEMBER 16, 1981

ATTESTED:


CESAR R. NUNEZ
City Secretary


ELIAS B. LOPEZ
Mayor, City of Davao

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